

Giga Energy 1 Year Warranty



Last Updated September 2024

1. Goods purchased with this warranty are guaranteed by Giga Energy Inc. (the "Seller") to operate in accordance with its nameplate when operated under normal load, usage, conditions and with proper care, installation and supervision according to the below terms. This warranty is made to (and only to) the original purchaser ("Buyer") for the coverages described below.
2. Transformers: Seller warrants to Buyer that for a period of one year from the date of Seller's written notification to Buyer of the Goods readiness to ship or delivery of the Goods (whichever comes first) (the "Transformer Warranty Period"), that the Goods are free from defects of workmanship and materials and that under normal use and conditions, all electrical functions will operate substantially as it is intended to perform.
3. Switchboards: Seller warrants to Buyer that for a period of one year from the date of Seller's written notification to Buyer of the Goods readiness to ship or delivery of the Goods (whichever comes first) (the "Switchboard Warranty Period"), that the Goods are free from defects of workmanship and materials and that under normal use and conditions, all electrical functions will operate substantially as it is intended to perform.
4. Mining Equipment: Seller warrants to Buyer that for a period of one year from the date of Seller's written notification to Buyer of the Goods readiness to ship or delivery of the Goods (whichever comes first) (the "Mining Warranty Period"), that the structural components of the Goods are free from defects of workmanship and materials and that under normal use and conditions, all electrical and cooling functions will operate substantially as it is intended to perform.
5. All major repairs are to be performed at our Texas facility or at our California facility. Complete warranty details are available upon request. Buyer is responsible for performing all regular maintenance and repair on the Goods purchased from Seller.
6. The foregoing warranties do not apply and shall be void in the event of any damage or defect arising out of or related to: improper installation, misalignment, improper or inadequate repair or maintenance, abuse, misuse or use outside Buyer's specified parameters, alteration, acts of vandalism or terrorism, accident or Acts of God, normal wear and tear, or such other causes as stated in the manufacturer's warranty.
7. EXCEPT FOR THE WARRANTY SET FORTH ABOVE, SELLER MAKES NO WARRANTY WHATSOEVER WITH RESPECT TO THE GOODS, INCLUDING ANY (i) WARRANTY OF MERCHANTABILITY; (ii) WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE; (iii) WARRANTY OF TITLE; OR (iv) WARRANTY AGAINST INFRINGEMENT OF INTELLECTUAL PROPERTY RIGHTS OF A THIRD PARTY; WHETHER EXPRESS OR IMPLIED BY LAW, COURSE OF DEALING, COURSE OF PERFORMANCE, USAGE OF TRADE OR OTHERWISE.
8. Products manufactured by a third party ("Third-Party Product"), including but not limited to bitcoin mining ASICs, may constitute, contain, be contained in, incorporated into, attached to, or packaged together with, the Goods. Third-Party Products are not covered by the warranty in above. For the avoidance of doubt, SELLER MAKES NO REPRESENTATIONS OR WARRANTIES WITH RESPECT TO ANY THIRD PARTY PRODUCT, INCLUDING ANY (a) WARRANTY OF MERCHANTABILITY; (b) WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE; (c) WARRANTY OF TITLE; OR (d) WARRANTY AGAINST INFRINGEMENT OF INTELLECTUAL PROPERTY RIGHTS OF A THIRD PARTY; WHETHER EXPRESS OR IMPLIED BY LAW, COURSE OF DEALING, COURSE OF PERFORMANCE, USAGE OF TRADE OR OTHERWISE.
9. The Seller shall not be liable for a warranty claim unless: (i) Buyer gives written notice of the defect, reasonably described, to Seller within seven (7) days of the time when Buyer discovers or ought to have discovered the defect; (ii) Seller is given a reasonable opportunity after receiving the notice to examine such Goods and Buyer (if

requested to do so by Seller) returns such Goods to Seller's place of business at Seller's cost for the examination to take place there; and (iii) Seller reasonably verifies Buyer's claim that the Goods are defective.

10. The Seller shall not be liable for a warranty claim or breach of the warranty if: (i) Buyer makes any further use of such Goods after giving such notice; (ii) the defect arises because Buyer failed to follow Seller's oral or written instructions as to the storage, installation, commissioning, use or maintenance of the Goods; (iii) Buyer alters or repairs such Goods without the prior written consent of Seller; or (iv) in cases where the Goods are not located at the Seller's facilities, the warranty does not apply to: (A) damage resulting from accident, abuse, misuse, neglect, improper handling or improper installation; (B) damage or loss of the product caused by undue physical or electrical stress, including but not limited to moisture, corrosive environments, high voltage surges, extreme temperatures, shipping, or abnormal working conditions; (C) damage caused by operator error, or non-compliance with manufacturer's instructions as to the storage, installation, commissioning, electric powering, internet connectivity, use or maintenance of the product or (if there are none) good trade practice; and (D) damage or loss of functionality due to interoperability with the Buyer's software and/or hardware. The warranty also does not apply to normal wear and tear and damage or loss of the Goods caused by a Force Majeure Event.
11. With respect to any such Goods during the applicable Warranty Period, Seller shall, in its sole discretion, either: (i) repair or replace such Goods (or the defective part) or (ii) credit or refund the price of such Goods at the pro-rata contract rate provided that, if Seller so requests, Buyer shall, at Seller's expense, return such Goods to Seller.
12. THE REMEDIES SET FORTH IN THIS WARRANTY SHALL BE THE BUYER'S SOLE AND EXCLUSIVE REMEDY AND SELLER'S ENTIRE LIABILITY FOR ANY BREACH OF THE LIMITED WARRANTY SET FORTH IN THIS DOCUMENT.
13. The Goods may have minor cosmetic blemishes. Seller's warranty does not cover small aesthetic defects, such as light scrapes and slight panel denting or bowing.
14. Repairs or replacements made by others without the Seller's consent shall void this warranty.
15. The Seller does not warrant that the Goods will meet or comply with the requirements of any safety code or regulation of any state, municipality, or other jurisdiction.
16. The Goods have been sold based upon the Buyer's determination that it is appropriate for the Buyer's intended application; the giving or failure to give any advice or recommendation by the seller shall not constitute any warranty or impose any liability upon the Seller.
17. The Seller's salespersons may have made oral statements about the Goods which do not constitute warranties, and are not part of the agreement for sale. The entire agreement for sales can be referenced by viewing the appropriate link on the Giga Energy website: <https://www.gigaenergy.com/documents>, and is a complete and exclusive statement of the terms and conditions of the agreement. There are no antecedent or extrinsic representations, warranties or collateral provisions that are not intended to be discharged and nullified by this document.
18. Seller's obligations under this warranty shall not, in any event, exceed the amount of the original purchase price of the equipment. In the event that the costs of the repair or replacement would exceed the original purchase price, the seller's obligations under this warranty shall be satisfied by a return of the purchase price.